

Court No. - 40

Case :- WRIT - C No. - 23199 of 2023

Petitioner :- Rashmi Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar Singh

Counsel for Respondent :- C.S.C,Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

On the request of the learned counsel for the petitioner, the matter is passed over for filing supplementary affidavit.

Put up this matter again as fresh on 02nd August, 2023.

Order Date :- 25.7.2023

Rama Kant

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Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard learned counsel for the petitioner; learned Standing Counsel for the State respondents and Shri Narendra Kumar Tiwari, learned counsel for Electricity Department.
2. Present writ petition has been preferred for a direction to respondent no.3 to give commercial electricity connection to the petitioner to run M/s BNK Fish Feed Mill and to decide the application dated 1.6.2023.
3. Learned counsel appearing for respondents submits that there is outstanding dues of electricity over the property in question and as per U.P. Electricity Supply Code 2005 without clearing the same, no new connection can be provided.
4. Confronted with this situation, learned counsel for the petitioner submits that the petitioner is intended to clear the outstanding amount in case easy installments are provided as on account of financial miseries, the petitioner cannot deposit the outstanding amount in one stroke and as such, direction may be given to the respondents to accord reprieve of installments and fix easy installments as per Clause 6.14 of U.P. Electricity Supply Code 2005.
5. Such request is not objected by learned counsel for the respondents. He submits that the Department is interested in realizing the entire due amount and in case petitioner approaches the competent authority afresh by moving an appropriate application, definitely the same would be considered as per law.
6. Be that as it may, no useful purpose would be served in keeping the writ petition pending consideration. The writ petition, on consent, is **disposed of** with observations that in case the petitioner moves a fresh application before the Competent Authority under Clause 6.14 of U.P. Electricity Supply 2005 within a weeks time,

the Authority concerned shall proceed to dispose of the application, so that the petitioner may deposit the due amount and the authority may also process the application for providing the fresh electricity connection.

Order Date :- 2.8.2023

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